

In the North, the “militia draft” of 1862 was followed in March 1863 by the Enrollment Act. Unlike the earlier piece of legislation, this new measure was formally organized at the national rather than the state level. It mandated that all Northern males between ages 20 and 45 were eligible for conscription. People could, however, hire a substitute by paying a \$300 commutation fee and so escape the current draft round. The \$300 exemption clause, like the Confederate equivalent for large enslavers, created immense dissatisfaction among the North’s urban poor and led to rioting, notably the infamous New York City Draft Riots, which rocked the city for four days in July 1863. Parts of the city were burned to the ground, hundreds of free Black people were killed, an orphanage for Black children was destroyed, and Republican and abolitionist property was looted and damaged before Federal troops arrived fresh from the Battle of Gettysburg. They imposed order at the point of the bayonet.

Northerners who hired substitutes to fight for them included many luminaries of America’s postwar Gilded Age: John D. Rockefeller, Andrew Carnegie, J. P. Morgan, and Theodore Roosevelt Sr., father of future president “Teddy” Roosevelt.



Execution parade

Desperate to stem the tide of desertion, in August 1863 the Union high command ordered the public execution by firing squad of five deserters from the Army of the Potomac. Artist Edwin Forbes captured the scene.

Deserters and “bounty-jumpers”

As the war extended into its third year, the Northern and Southern home fronts grew ever more resistant to the draft. Men conscripted into the army or navy frequently deserted at the first possible moment, especially toward the end of the war. Worse, a black-market enterprise, called “bounty-jumping,” developed in the North that took advantage of state and Federal incentives to encourage